

		15. The proposed order and judgment should state how notice of entry of the judgment will be given to the aggrieved employees. 16. The proposed order and judgment should state that the court orders the parties, their counsel and the settlement administrator to administer the settlement in accordance with the terms of the settlement agreement. 17. The proposed order and judgment should include a proposed date for the final accounting hearing. The final accounting hearing should occur after the deadline to cash checks has expired. The court holds final accounting hearings on Thursdays at 9:00 a.m. The proposed order and judgment shall state that counsel shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. The hearing on plaintiff's motion for approval is continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an "amended settlement agreement," to streamline the court's review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
9	Reyna v. Eagle Community Credit Union 2021-01225885	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$150,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; \$37,500.00 for attorneys' fees; \$12,857.47 for attorneys' costs; \$4,138.00 for settlement administration fees; and

		\$95,504.53 total PAGA penalties (\$71,628.40 to LWDA). Plaintiff is ordered to submit <u>by June 4, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; three amendments thereto; and notice letter (including the above amounts)). The final accounting hearing is scheduled for <u>February 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Rodgers v. No Ordinary Moments, Inc. 2023-01349601	Off calendar.
11	Rodriguez v. Han.Sam Corp dba River's Edge Pharmacy 2026-01542228	<u>Defendant Han.Sam Corp dba River's Edge Pharmacy's Motion to Compel Arbitration</u> Defendant Han.Sam Corp dba River's Edge Pharmacy moves for an order compelling plaintiff Cindy Rodriguez to arbitrate her individual claims and dismissing her class allegations. For the following reasons, defendant's motion is denied. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>Existence of an arbitration agreement</i> A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056. "The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden 'by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.' (<i>Espejo, supra</i>, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330].' (<i>Condee, supra</i>, at pp. 218-219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual